

CREATION OF A SECURITY INTEREST IN SECURITIES BY DIRECT ORDER OF THE HOLDER

The creation of a usufruct shall be carried out either by the Participant or by Euronext Securities Athens.

The usufruct is established either by inheritance, in the context of succession, or in life by agreement between the beneficiaries (Remainder Man and Usufructuary).

Action required by the parties to establish a life estate by request of the beneficiary:

1. **Commitment** of the securities to be transferred by the Participant, with a declaration of intention to transfer (the transferor shall address the Participant holding the securities and instruct the Participant to make such commitment).
2. **Euronext Securities Athens shall transfer the securities from the Usufructuary's Share to the Remainder Man's Share available under the handling of the Remainder Man's Participant** and shall request the Participant to re-commit the securities to be transferred from the Participant, with cause for a declaration of intention to transfer.
3. Submission to the Euronext Securities Athens of **a private agreement or notarial document** establishing usufruct for sale, donation or parental benefit, between the parties to the contract, with their signatures certified by an administrative authority, if the parties do not sign in front of the competent official of the Euronext Securities Athens.

The private agreement must include the following information about the transferor and transferee:

- a) Name and surname for a natural person or name for a legal entity
- b) The legal representative of the legal entity
- c) The number and date of issue of the identification certificate, in the case of a natural person
- d) Tax identification number and tax office
- e) The share account and the Securities account of the contracting parties

- f) The Securities to be blocked
- g) The quantity of each Security

In addition, the private contract must also state that the assets transferred are free of encumbrances and, in the case of a sale, that the price has been paid in cash to the transferor by the transferee.

4. Submission to Euronext Securities Athens of **a fully completed application for notification of the creation of a usufruct** ([APP011](#)). In case of non-completion the conditions, they will be registered in favor of the Remainder Man. It is noted that in order to complete the registration, the usufructuary is required to have an active Securities Account with the Participant where the usufruct will be established.
5. Payment to Euronext Securities Athens of the relevant royalties in accordance with Euronext Securities Athens Board Decision 18:
 - 0.04% of the value of the transfer, by each Participant. For the calculation, the transfer value is taken as the higher of the amount stated in the private agreement (or notarial document) and that obtained by multiplying the amount by the closing price of the security on the day of filing the documents, with a minimum charge of €10 per party.

Notes:

- The **application for notification of the creation of a usufruct** ([APP011](#)) requires simple signatures.
- If the contracting Remainder Man is an **underage** (under 18 years old), usufruct can only be established by donation or parental benefit. In this case a notarial document is required. Especially for parental benefit and provided that the underage has reached the age of 10, it can also be done by private agreement signed by both parties, otherwise (if the underage is under 10 years old) a notarial document is also required.
- If the usufruct is established by **donation or parental benefit**, then a certificate of article 105 of Law 2961/2001 (from the Tax Office) is also required. Alternatively and in accordance with par. 5 of article 26 of Law No. 3220/2004 as in force, instead of the certificate, a copy of the relevant tax return is submitted by the taxpayer, as well as a Formal Declaration of Article 8 of Law No. 1599/1986, stating that the data resulting from the submitted tax return have not changed and that the tax has been paid in full. The declaration must be certified by an administrative authority or via gov.gr as authentic. **Notifications of transactions** to fulfil MiFID II obligations are made by the Participants involved.